IGNIS CARE LIMITED
30 Pipit Walk Hemel Hempstead HP3 0FR

Review Sheet

Last Reviewed 9 Apr 2025 | Last Amended 9 Apr 2025 | This policy will be reviewed as needs require or at the following interval: Annual

Business Impact:	LOW — Minimal action required. Circulate information amongst relevant parties.
Reason for this Review:	Scheduled review
Changes Made:	Yes
Summary:	The purpose of this policy is to set out the notice periods expected to be given by a member of staff and the employer. It has been reviewed with minor word changes. Underpinning Knowledge and Further Reading links have also been checked and updated.
Relevant Legislation:	• Employment Rights Act 1996 • The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014
Underpinning Knowledge:	• Author: Legislation.gov.uk, (1996), Employment Rights Act 1996 [Online] Available from: https://www.legislation.gov.uk/ukpga/1996/18/contents [Accessed: 09/04/2025] • Author: Care Quality Commission, (2024), Regulation 19: Fit and proper persons employed [Online] Available from: https://www.cqc.org.uk/guidance-providers/regulations-enforcement/regulation-19-fit-proper-persons-employed [Accessed: 09/04/2025] • Author: LEGISLATION.GOV.UK, (2014), The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014 [Online] Available from: https://www.legislation.gov.uk/ukdsi/2014/9780111117613/contents [Accessed: 09/04/2025]
Suggested Action:	• Encourage sharing the policy through the use of the QCS App
Equality Impact Assessment:	QCS have undertaken an equality analysis during the review of this policy. This statement is a written record that demonstrates that we have shown due regard to the need to eliminate unlawful discrimination, advance equality of opportunity and foster good relations with respect to the characteristics protected by equality law.

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IGNIS CARE LIMITED
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1. Purpose

1.1 To ensure that all staff know the position of IGNIS CARE LIMITED when it comes to giving notice, both when IGNIS CARE LIMITED gives notice and when staff resign.

1.2

Key Question	Quality Statements
EFFECTIVE	QSE2: Delivering evidence-based care & treatment QSE3: How staff, teams & services work together

1.3 Relevant Legislation
- Employment Rights Act 1996
- The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014

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2. Scope

2.1 Roles Affected:
- All Staff

2.2 People Affected:
- Service Users

2.3 Stakeholders Affected:
- Family
- Representatives
- Local Authority
- NHS

3. Objectives

3.1 To manage any changes in staff effectively.

3.2 To set out clearly and concisely the process involved in serving notice and the reasons for this.

4. Policy

4.1 IGNIS CARE LIMITED is required to plan for any staffing shortages to ensure that consistent levels of service are provided to Service Users, to ensure that the quality of these services is maintained and that an appropriate period of time is therefore given for a full and complete handover. As part of this planning process, it is essential that staff are aware of how to give notice, the need to give appropriate and adequate notice of their intention to resign from their roles and that they comply with the notice provisions.

4.2 If a member of staff who is giving notice and only statutory notice applies (i.e. there isn't a longer notice period required in the contract of employment), statutory notice from an employee to IGNIS CARE LIMITED is one week.

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4.3 In the event that IGNIS CARE LIMITED serves a member of staff with notice, it will ensure that the member of staff receives the appropriate notice, either under their contract of employment or statutory notice (whichever is the greater period). The minimum statutory notice period is as follows:

- One week's notice if you have been employed for more than one month but less than two years; or
- Two weeks' notice if you have been employed for two years and an additional week's notice for each additional complete year of service up to a maximum of 12 weeks' notice

As an example, an individual who has four complete years of service is entitled to four weeks' notice.

4.4 In the event that an individual is summarily dismissed for gross misconduct under the Discipline Policy and Procedure at IGNIS CARE LIMITED, the individual will not be entitled to any notice, nor will they receive payment for it.

In the event that an individual is found not to be a fit and proper person under Regulation 19, IGNIS CARE LIMITED will consider whether it is necessary to summarily dismiss them.

4.5 This policy does not form part of any contract of employment and may be amended at any time.

5. Procedure

5.1 Termination of Employment or Engagement

IGNIS CARE LIMITED will ensure that staff contracts contain notice periods appropriate to their level of seniority and importance. IGNIS CARE LIMITED follows the CQC guidance in this regard. IGNIS CARE LIMITED will also ensure that the appropriate notifications are given to the CQC in the event that Mrs Miriam Chengeto Cummings resigns from their position or is dismissed.

To give less notice than that required under the contract of employment will be a breach of contract (see 5.12 below).

5.2 Resignation

If a member of staff wishes to leave their employment or engagement, they must give notice of their resignation to IGNIS CARE LIMITED. This notice must be in writing and given to their line manager. Should staff give oral notification of their intention to resign, IGNIS CARE LIMITED will require staff to follow this up in writing.

The written notice must:

- Confirm that it is their intent to resign
- Specify their notice period; and
- Confirm the date they intend to work to

The notice shall be deemed to have been received at the time the written notice is personally handed to their line manager.

5.3 Acknowledgement of Resignation

Once notice of resignation has been received (and if appropriate an earlier notice period agreed), IGNIS CARE LIMITED will, at the earliest opportunity, provide a written acknowledgement of resignation confirming the final day of employment or engagement.

5.4 Handovers

IGNIS CARE LIMITED will work with staff to manage the handover of work to another staff member. The Support of Service Users and/or the other individuals whom IGNIS CARE LIMITED provides Support for are paramount and they need to ensure that continuity of care and the relationship is maintained during the notice period. IGNIS CARE LIMITED expects staff to work with them as part of this process.

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5.5 Payment In Lieu

Instead of working the notice period, IGNIS CARE LIMITED may choose to make a payment in lieu of notice to a member of staff. This is a payment of the sums they would have received had they worked their notice. Staff will not be required to work their notice. A member of staff does not have a right to be paid in lieu of notice; this is entirely at the discretion of IGNIS CARE LIMITED.

For the avoidance of doubt, the payment in lieu of notice shall not include any entitlement in relation to:

- Any bonus or commission payments that might otherwise have been due during the period for which the payment in lieu is made
- Any payment in respect of benefits which the member of staff would have been entitled to receive during the period for which the payment in lieu is made; and
- Any payment in respect of any holiday entitlement that would have accrued during the period for which the payment in lieu is made

IGNIS CARE LIMITED shall be entitled to dismiss an employee at any time without notice or payment in lieu if the employee commits a serious breach of their obligations as an employee, or if they cease to be entitled to work in the United Kingdom.

5.6 Garden Leave

Subject to the terms of the staff contract of employment, IGNIS CARE LIMITED may opt to place the member of staff or agree with them that they will serve all or part of their notice period on garden leave.

During this period, the member of staff's terms and conditions of employment will remain in place including the duties to act in the best interests of IGNIS CARE LIMITED and the duty of confidentiality. The member of staff will also receive all salary and contractual benefits as normal but will not be required to attend work and to undertake any work unless otherwise instructed to do so by IGNIS CARE LIMITED.

During such time, the member of staff will ensure their line manager knows where they will be and how they can be contacted on each working day, and they shall comply with all requests to contact a specified employee of IGNIS CARE LIMITED at specified intervals. In addition, the member of staff should not, without the prior written consent of their line manager, contact or deal with (or attempt to contact or deal with) any member of staff or Service User at IGNIS CARE LIMITED.

5.7 Shorter Notice Period

Should staff wish to work a shorter notice period than what they are contractually required to provide, they must discuss this at the earliest opportunity with their line manager. IGNIS CARE LIMITED has absolute discretion as to whether staff are allowed to work a shorter notice period. If a shorter notice period is agreed with the member of staff, this will be confirmed in writing. Staff shall only receive payments and contractual benefits (if any) up to the agreed earlier departure date.

5.8 Notice Period during Probationary Period

Unless an individual's contract of employment states otherwise, the prior written notice required from the employee or IGNIS CARE LIMITED to terminate an employee's employment during their probationary period will be one week's notice.

5.9 Exit Interview

IGNIS CARE LIMITED may require the employee to attend an exit interview prior to their final day of employment with IGNIS CARE LIMITED at which they will be encouraged to discuss all aspects of their job and reasons for leaving. Information gained at such interviews will be used to monitor staff turnover and to identify potential problem areas.

5.10 Company Property

Staff are responsible for returning all company property to the administration department before they leave. This includes but is not limited to uniforms, security badges, keys, mobile phones, equipment, records, correspondence, documents, files and other information (whether originals,

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copies, extracts and whether on disc, computer, hard copy or otherwise) belonging to IGNIS CARE LIMITED or relating to the business, which are in their possession or under their control, and they will not retain any copies.

In line with the employment contract, failure to return such items will result in the cost of the items being deducted from any monies outstanding. Alternatively, IGNIS CARE LIMITED may pursue the employee for the costs of replacing these.

5.11 Loans, Advances and Final Salary

Outstanding loans and advances of expenses must be repaid to IGNIS CARE LIMITED before the employee leaves or as soon as is practicable in the case where the employee has not worked out their notice. Where the contract or prior written agreement allows, deductions will be made from final payments, in settlement. Payment will be required from the employee in respect of any balance still outstanding.

In respect of legitimate expense claims up to the date employment ends, IGNIS CARE LIMITED will forward payment.

Whenever possible, final payments will be made up and a P45 issued on the date of leaving. Where this is not feasible, they will be sent by first class post as soon as they have been prepared. Queries over payments should be addressed to IGNIS CARE LIMITED.

5.12 Breach of Contract

Should the employee fail to work their required period of notice, this will be a breach of the employment contract and IGNIS CARE LIMITED reserves the right to recover any costs and/or losses incurred as a result of this breach, including the additional costs incurred in arranging cover for the hours the employee should have worked. These costs and/or losses may be deducted from final payment of wages. Should this be insufficient to cover the costs incurred by IGNIS CARE LIMITED, then IGNIS CARE LIMITED reserves the right to pursue these costs as a debt through the appropriate courts.

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6. Definitions

6.1 Notice Period

- The time period which must be given and worked by the member of staff if they either choose to resign or {Client_Name_Official} choose to terminate the member of staff's employment or engagement

6.2 Garden Leave

- The term used for a period during which an employee remains on normal salary and bound by their contract of employment but is requested, usually under an express term of the contract, not to attend the office or contact clients or customers

6.3 Payment in Lieu of Notice

- A contractual right to pay an employee a lump sum representing the amount of pay they would otherwise have received had they worked their notice period (subject to the usual deductions for tax and national insurance) rather than require them to work out their statutory or contractual notice period

6.4 Regulation 19

- Regulation 19 Health and Social Care Act 2008 (Regulated Activities) Regulations 2014 sets out the legal requirement of what constitutes a 'fit and proper person'

7. Key Facts - Professionals

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Professionals providing this service should be aware of the following:

- The notice shall be deemed to have been received at the time the written notice is personally handed to the employee's line manager
- Employees must work their required notice period unless IGNIS CARE LIMITED, in its absolute discretion, agrees a shorter period
- Instead of working their notice period, IGNIS CARE LIMITED may agree with a member of staff that they will go on garden leave or will receive a payment in lieu of notice, again entirely at the discretion of IGNIS CARE LIMITED
- IGNIS CARE LIMITED will ensure that all notice periods are served in full, where possible or needed, to ensure continuity and consistency of service to the Service Users

8. Key Facts - People Affected by The Service

People affected by this service should be aware of the following:

- IGNIS CARE LIMITED will make sure that they tell you if your regular Support Worker is going to change before you meet the new Support Worker
- IGNIS CARE LIMITED understands that you may have developed a close working relationship with a Support Worker who may choose to stop working or be asked to stop working for IGNIS CARE LIMITED. IGNIS CARE LIMITED will make sure that you continue to receive support and care as planned and that your Support is provided by staff who know what your needs and wishes are

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Further Reading

Royal College of Nursing - Notice:

https://www.rcn.org.uk/Get-Help/RCN-advice/notice

ACAS - Notice Periods:

https://www.acas.org.uk/notice-periods

Government - Handing in your Notice:

https://www.gov.uk/handing-in-your-notice

Discipline Policy and Procedure

Outstanding Practice

To be "outstanding" in this policy area you could provide evidence that:

- IGNIS CARE LIMITED keeps families informed of the fact that the specific member of staff is leaving and puts in place handover provisions to ensure continuity of service
- The wide understanding of the policy is enabled by proactive use of the QCS App
- IGNIS CARE LIMITED ensures that any notice received from an employee is dealt with immediately and that an open dialogue is had with the employee about their intentions for

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their notice period
- IGNIS CARE LIMITED goes over and above the minimum requirements from a CQC perspective

Forms

The following forms are included as part of this policy:

Title of form	When would the form be used?	Created by
Employee Termination Administration Record - PC10	When an employee leaves.	QCS
Letter Confirming Unsuccessful Completion of Probationary Period - PC10	When an employee has failed probation.	QCS
Resignation Acknowledgement Letter - PC10	To acknowledge an employee's resignation.	QCS
Employee Termination Exit Interview - PC10	To interview an employee who is leaving.	QCS
Employee Exit Questionnaire - PC10	When an employee leaves the company.	QCS

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Employee Termination Administration Record - PC10

Employee Name:			
Employee Job Role:			
Date of Notification:			
Employee Start Date:			
Employee End Date:			
Contract Type (e.g. temporary, permanent):			
Normal hours worked per week:			
To be replaced?			
Reason for termination:	Resignation (state reason given by employee below).	Yes/No	
	Dismissal (state reason below, attach personnel file including all documentation referring to disciplinary proceedings).	Yes/No	
	Other (state reason):		
Reason for resignation (given by employee):			
Reason for dismissal:			
Union Involvement? If yes, which one?			
DBS notification date where applicable:			
Termination interview (compulsory; attach full report):		Date of interview:	

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Main points:			

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Agreed last working day:			
Property returned or agreed on cost if not returned [Yes/No]:	Employee Manual	Yes/No	Cost:
	Uniforms	Yes/No	Cost:
	Keys	Yes/No	Cost:
	Loaned training material	Yes/No	Cost:
	Other [state]	Yes/No	Cost:
	Other [state]	Yes/No	Cost:
Holiday pay outstanding [pro-rata]:			
Amount of any outstanding loans:			
Wages dept.	Outstanding loans balances deducted:		
	Pro rata holiday pay paid:		
	Final payment calculated:		
	Date of final payment made:		
	Date P45 raised and sent:		
	SSP transfer form completed [if appropriate]:		
Would you re-employ this person?			
Manager's Name:			
Manager's Signature:			
Date:			

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Letter Confirming Unsuccessful Completion of Probationary Period - PC10

[on headed notepaper of IGNIS CARE LIMITED]

[**Employee Name**]

[**Employee Address**]

[**Date**]

Dear **[Employee Name]**

Re: Probationary Period

I write further to the above matter and your meeting with [**name**] on [**date**]. As confirmed in that meeting, you have not passed your probationary period and, as a result, your employment will be terminated with immediate effect.

You will be paid [**number**] weeks' salary in accordance with your notice period under your contract of employment [**to be paid in lieu of you being required to work your notice period in accordance with clause [number] of your contract of employment**]. For the avoidance of doubt, you will not be required to work your notice period.

You have accrued [**number**] days holiday from [**date**] to your leaving date, you have to date taken a total of [**number**] days holiday, [**leaving you with [number] day(s) remaining**.] OR [**meaning that there are no outstanding holidays due and owing to you**.] OR [**which means that you have taken [number] days more than your entitlement. The Company will, therefore, make a deduction** from your final salary to repay the sums owed to the Company**.]

I confirm your final pay date will be [**date**], where you will be paid for your remaining accrued salary, outstanding holiday(s) where applicable, and the payment in lieu of notice. Your P45 will be issued after that date. If you have any queries regarding your salary, please do not hesitate to contact me.

I would like to take this opportunity to wish you well for the future.

Yours sincerely,

[**Name**]
On behalf of IGNIS CARE LIMITED

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****NB**: only where you have written authority or a contractual right to so do.

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Resignation Acknowledgement Letter - PC10

[on headed notepaper of IGNIS CARE LIMITED]

[**Employee Name**]

[**Employee Address**]

[**Date**]

Dear [**Employee name**],

Re: Your resignation

I write to confirm receipt of your letter of resignation dated [**insert date**].

[Your resignation from the position of [job title and site/department as applicable] will be effective from [date of effective resignation which should be confirmed with HR department or equivalent]. Therefore, your last working day will be [date].]

OR

[I note that in your letter you state your last working day will be [date]. May I remind you that you are required to give full contractual notice of [insert details and relevant contract of employment provision] which means that your last contractual date of work will be [date]].

Failure to give contractual notice would mean you will be in breach of contract and therefore will be liable for any additional costs (over your normal salary) the Company incurs as a result of this breach, specifically the costs of having to ensure that your work is covered during the period in which you are obliged to work your contractual notice. We refer to the Staff Handbook and your Contract of Employment in this regard. IGNIS CARE LIMITED will deduct any such costs incurred from your final salary before making payment to you.

OR

[We are willing to waive your notice period in line with your request, which means that your leaving date will be [date]].

AND [if appropriate and if there is an appropriate provision in the contract]

[We are exercising our right to put you on garden leave for the remainder of your notice period pursuant to [insert relevant clause from employment contract]. You must remain available for work in this period. However, IGNIS CARE LIMITED may not require you for any work. You will continue to receive your salary and contractual benefits. During

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the existence of the notice period you are bound by the contract of employment and you will not work for any other organisation.]

[May I remind you to return all company property to the administration department before you leave, including uniforms, security badges and keys, mobile phone, equipment, records, correspondence, documents, files and other information (whether originals, copies, extracts and whether on disc, computer, hard copy or otherwise) belonging to us or relating to the business, which are in your possession or under your control and that you are not to retain any copies.

Failure to return such items could result in the cost of the items being deducted from any monies outstanding to you or to us pursuing you at law.]

[**Insert details of exit interview date, time, venue and interviewer, if applicable**.]

Final payments subject to any deductions, if necessary, will be paid on or around [**date**] and a P45 will be issued to you on the date of leaving. Where this is not feasible, they will be sent by first class post as soon as they have been prepared. Queries over payments should be addressed to the Company.

It has been a pleasure working with you, and I wish you all the best in the future. [**If I can provide a reference, please do not hesitate to ask**.]

Yours sincerely,

[**name**]

On behalf of IGNIS CARE LIMITED

This is a precedent letter and for general guidance only. You should ensure that you complete all the missing information where indicated within the square brackets or delete as appropriate. If you are unsure about any matters referred to within this letter, it is recommended that you seek legal advice.

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Employee Termination Exit Interview - PC10

All terminated employees will be requested to participate in this exit interview, either before leaving or, if they prefer, they should be given this form for completion and return it after leaving. In either case, the manager should complete the first three lines before the interview/sending of the form.

Name of employee:	
Date of termination:	
Reason for termination (manager's view):	
Employee's view of the reason for leaving:	
Do you believe that you have been discriminated against in any way during this employment? If yes, please describe.	
Do you believe that any other person within IGNIS CARE LIMITED has contributed to your decision to leave or your termination?	
Do you have any suggestions which you think should be brought to the attention of the Registered Manager or Ignis Care Limited?	
Signed (employee or ex-employee as appropriate):	

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Date:	

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Employee Exit Questionnaire - PC10

Dear [Full Name of Employee],

We, at IGNIS CARE LIMITED, would like to thank you for completing this questionnaire. The information you provide will be treated with the utmost confidentiality. Your responses will enable us to understand your experience of working for us and support us in making improvements for the future.

All questions are optional. You are not obliged to answer any of the questions but the more information you supply, the more effective our monitoring will be. The information supplied will be treated in the strictest of confidence in line with principles of the Data Protection Act 1998. The data will be used to enable the Organisation to improve its retention of staff by monitoring and reviewing staff turnover trends. If you choose to share your name, then we will take it that you are happy for us to contact you about your feedback.

The questionnaire will take 5-10 minutes and we are happy to provide it in a written or online format or complete it over the phone with you if that would help. For each statement, please choose from the options provided. The comments box is optional and only needs to be answered if you wish to provide some additional detail.

Reason for Leaving – Please tick a reason against the category provided	
Early Retirement	
Normal Retirement	
Ill-Health Retirement	
Compulsory Redundancy	
Voluntary Redundancy	
Voluntary Resignation – Adult Dependents	
Voluntary Resignation – Better Reward Package	
Voluntary Resignation – Child Dependents	
Voluntary Resignation – Health	
Voluntary Resignation – Incompatible Working Relationships	
Voluntary Resignation – Lack of Opportunities	
Voluntary Resignation – Promotion	
Voluntary Resignation – Relocation	

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Voluntary Resignation – To undertake further education or training	
Voluntary Resignation – Work Life Balance	
Moving Internally	
End of Temporary Contract	
Mutually Agreed Resignation	

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Please give a general comment about the reason you are leaving	
Do you have a complaint or grievance about IGNIS CARE LIMITED or an individual member of staff? **Yes or No**	
If you wish to discuss your answers to the survey further or if you have a complaint or grievance about IGNIS CARE LIMITED or an individual member of staff, please raise this before you leave, through the relevant procedures outlined in the Grievances Policy and Procedure	

Job role and duties	**Strongly Agree**	**Agree**	**Not Sure**	**Disagree**	**Strongly Disagree**
I enjoyed working for IGNIS CARE LIMITED					
My duties were clearly explained to me when I took on the role					
My duties have changed substantially since I took on the role					
My current job description accurately describes the job					
I felt valued in my role					
The workload for my role was appropriate and manageable					
My role matched my expectation from the job description and recruitment process					
Any comments:					

Working conditions	**Strongly Agree**	**Agree**	**Not Sure**	**Disagree**	**Strongly Disagree**
My physical working conditions were good					

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I felt that I was able to raise concerns that I might have had over physical working conditions with my line manager					
Any comments:					

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Communication and relationships with line manager and colleagues	Strongly Agree	Agree	Not Sure	Disagree	Strongly Disagree
The morale in my team was good					
My working relationships with my colleagues were good					
My working relationship with my line manager was good					
My line manager treated me fairly					
My line manager was a good leader and role model					
My line manager always welcomed ideas that I put forward					
I felt supported and empowered to influence the way the team worked					
I was always involved in decisions that affect me in my work					
Communication was good and I knew what was happening in IGNIS CARE LIMITED					
I felt able to speak up and raise any concerns I had at work regarding risk, malpractice or wrongdoing					
Any comments:					

Training, development and supervision	Strongly Agree	Agree	Not Sure	Disagree	Strongly Disagree
I was given an effective induction into IGNIS CARE LIMITED					
I was given an effective induction into my team					
I received adequate training and coaching to perform my role					

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I was given opportunities to learn, develop and progress my career opportunities within IGNIS CARE LIMITED					
I received an annual appraisal and regularly discussed my objectives and performance with my line manager					
I received regular supervision					
Any comments:					

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Work-life balance and health & wellbeing	Strongly Agree	Agree	Not Sure	Disagree	Strongly Disagree
I was happy with my work-life balance while working for IGNIS CARE LIMITED					
IGNIS CARE LIMITED allowed me to work flexibly when I needed to					
The health and wellbeing of staff in IGNIS CARE LIMITED is actively encouraged and promoted					
IGNIS CARE LIMITED provides staff with access to schemes and initiatives that promoted physical and mental wellbeing					
Any comments:					

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Is there anything that we could have done to retain you as an employee?
If you are changing roles/organisation in what way do you consider the new role/organisation is better for you?
Do you have any suggestions about how the job could be improved?
If there is one thing you could change that would have a significant impact on staff what would it be?
What type of benefits are of most importance to you? What specific benefits do/would you most value? In what ways do you think we could improve our employee benefits e.g. annual leave, pension, occupational health, childcare vouchers?
Would you consider working for IGNIS CARE LIMITED in the future?
Any further comments about working for IGNIS CARE LIMITED?

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Thank you for taking the time to complete this survey, we wish you all the very best in the future.

Please return the completed questionnaire by email to Mrs Miriam Chengeto Cummings or via post to IGNIS CARE LIMITED.

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